

26NWLC23486 26NWLC23486

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-09-10

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26NWLC23486: SYNCHRONY BANK vs ROSLYN RAMEY

Tentative Ruling:

The Court has read and reviewed the moving papers filed by Defendant Roslyn Ramey ("Defendant"), the opposition filed by Plaintiff Synchrony Bank ("Plaintiff"), and the relevant court records.

Defendant's Motion to Quash Service of Summons ("Motion") was originally set for hearing on June 2, 2026. At that hearing, Defendant advised the Court that Plaintiff served the Summons and Complaint on Defendant's minor son. The Court continued the hearing to September 10, 2026 to permit Defendant to file a supplemental declaration. On July 7, 2026, Defendant filed additional declarations under penalty of perjury from herself and from her son, Amir Morris.

Defendant specially appears and moves to quash service of summons pursuant to Code of Civil Procedure section 418.10, contending she was not properly served and that the Court therefore lacks personal jurisdiction over her.

Plaintiff contends Defendant was served by substituted service at Defendant's undisputed residence address—the same address used in Defendant's motion papers—on May 5, 2026, and that a copy of the Summons and Complaint was mailed to Defendant on May 6, 2026. Plaintiff further argues Defendant had notice of the action because she filed the Motion on May 7, 2026. Plaintiff contends substituted service was valid and Defendant has not presented sufficient evidence to overcome the rebuttable presumption arising from the filed Proof of Service.

Evidence Code section 647 creates a rebuttable presumption that service was properly effected when a registered process server files a proof of service. The party challenging service bears the burden to present sufficient evidence to rebut that presumption. (Evid. Code, §§ 647, 660.)

Code of Civil Procedure section 415.20(b) governs substituted service and requires, among other things, that the summons and complaint be left with a competent member of the household who is at least 18 years of age.

Here, a Proof of Service of Summons reflecting substituted service by a registered process server was filed on May 6, 2026, giving rise to the presumption under Evidence Code section 647. The Proof of Service states that "John Doe" was served on May 5, 2026 at 10:55 a.m., and estimates the age of the person served as 18–25 years old.

Defendant submits a declaration under penalty of perjury stating the process server left the documents with Defendant's son, who was 17 years old at the time of service. Defendant also submits a declaration under penalty of perjury from her son confirming he was served.

On this record, the Court finds Defendant has rebutted the presumption of valid substituted service.

Accordingly, Defendant's Motion to Quash Service of Summons is GRANTED.

The clerk shall give notice.